

## 25STCV33112 25STCV33112

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Case Number: 25STCV33112 Hearing Date: August 7, 2026 Dept: 224

Luis Valdez v. Los Angeles County MTA et al.,

### TENTATIVE RULING

Defendant Los Angeles County Metropolitan Transportation Authority's demurrer to Plaintiff's fourth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff is ordered to file a first amended complaint within 30 days or stand on his pleading subject to this Order.

The Case Management Conference is continued to December 8, 2026 at 8:30 a.m.

Defendant to give notice.

### ANALYSIS

#### Background

Plaintiff filed this motor vehicle negligence action on November 12, 2025, arising from an alleged car accident caused by an employee of the Los Angeles Metropolitan Transportation Authority (LACMTA) on November 12, 2023. Plaintiff names the driver, Luis Eduardo Perez Orduna, and LACMTA as defendants.

LACMTA demurs to Plaintiff's fourth cause of action for negligent hiring, supervision, or retention on the ground that LACMTA, a governmental entity, may not be held directly liable for negligence. Plaintiff opposes.

#### Legal Standard

Where pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th 209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.)

Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (*Picton v. Anderson Union High School District* (1996) 50 Cal.App.4th 726, 732.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

## Discussion

As a general rule, “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815, subd. (a).) Notwithstanding section 815, Government Code section 815.2 permits imposition of vicarious liability for torts committed by public employees in the scope of their employment: “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a); see also *Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, 819.) To impose liability on a government entity for negligence, a plaintiff must identify either a statute permitting liability on particular facts, or a basis for vicarious liability through an employee. (See *Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 808-809 [“[i]n California all government tort liability is now based on statute”].)

LACMTA argues that unlike Plaintiff’s claim for simple negligence, which flows to LACMTA vicariously through its employee Orduna, Plaintiff’s claim for negligent hiring seeks to impose liability directly on LACMTA in violation of principles of sovereign immunity.

Plaintiff does not respond to LACMTA’s argument in his opposition. He argues that “employers can be liable to third parties” for negligent hiring and “Plaintiff has alleged the required elements” of such a claim. (Opp., 4:20-21, 5:3-4). Whether or not Plaintiff is correct in the abstract about the sufficiency of his complaint, he does not respond to LACMTA’s argument that it is a public entity, subject to sovereign immunity rules.

If Plaintiff intends to state a claim for negligence – including negligent hiring – directly against LACMTA, a public entity, he must identify some basis for doing so notwithstanding Government Code section 815. He has not done so.

The demurrer is sustained. Because Plaintiff has yet to amend his pleading in response to demurrer, the Court grants him an opportunity to amend.

## Conclusion

Defendant Los Angeles County Metropolitan Transportation Authority’s demurrer to Plaintiff’s fourth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff is ordered to file a first amended complaint within 30 days or stand on his pleading subject to this Order. The Case Management Conference is continued to December 8, 2026 at 8:30 a.m.

Defendant to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at

its discretion.